

**Court No. - 37**

**Case :-** WRIT - C No. - 6672 of 2020

**Petitioner :-** M/S Tenguria Cold Storage

**Respondent :-** State of U.P. and Another

**Counsel for Petitioner :-** Vijay Tripathi

**Counsel for Respondent :-** C.S.C., Baleshwar Chaturvedi

**Hon'ble Abhinava Upadhyaya, J.**

**Hon'ble Shamim Ahmed, J.**

For recovery of electricity dues as well as penalty imposed thereon, a demand notice has been issued against the petitioner on 20.12.2019 (Annexure-1 to the writ petition, which is under challenge in the present writ petition.

Learned counsel for the petitioner submits that the petitioner accepts the entire liability and is ready to pay all the demanded money provided this Court fixes some easy installments.

For realization of the electricity dues no installments can be fixed by this Court. However, the Executive Engineer is the appropriate authority and has been vested with the power to fix installments under Clause 6.14 of the Electricity Supply Code.

In case the petitioner makes an application ventilating all its grievances before the Executive Engineer (respondent no. 2) within a weeks from today along with a certified copy of this order, he will consider the grievance of the petitioner, for fixation of easy installments, within three weeks thereafter.

The demand notice dated 20.12.2019 shall be subject to the final decision taken by the Executive Engineer, as directed above.

With the aforesaid observation/direction, the present writ petition is disposed of.

**Order Date :-** 25.2.2020

Pkb/

(Shamim Ahmed, J.) (Abhinava Upadhyaya, J.)